EXPLAINING THE DIFFERENCES IN STATE LOBBY REGULATION

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The most straightforward measure of legislative independence from interest group pressure is the rigor of the state's formal regulation of lobbyists. State registration and reporting requirements for lobbyists were cited by the Citizen Conference on State Legislatures (CCSL) as important criteria for both legislative independence and accountability (CCSL 1971b: 96, 97, 129, 130). The extent to which legislators resist inordinate interest group pressure is undoubtedly influenced by a whole host of factors, many of them intangible. However, the legislature's formal adoption of laws regulating lobbies and the oversight structure put into place to enforce these laws are important indicators of the institutional desire for independence. The CCSL maintains that "the very least that legislatures must do to establish their independence of undue influence—both in substance and in the eyes of the public—is make certain that lobbyists operate out in the open, where the press and public can see them" (CCSL 1971b: 129).

The adoption of lobby regulation laws in the states has been a lengthy and gradual process; the first law was passed by Massachusetts in 1890. Addressing charges of corruption, over half the states in the 1960s and 1970s introduced lobby registration and reporting requirements. Today lobbyists must register in all states—with the secretary of state, the clerk of the house or secretary of the senate, or with a special commission. In all but five states, lobbyists must file reports periodically, and in four-fifths of the states they must report expenditures (Rosenthal 1981: 117). In addition, more stringent lobby regulation reforms have been introduced at the federal level and in several state legislatures.

State legislatures and agencies charged with enforcement of lobbying regulations have traditionally been notorious for their neglect of both oversight and enforcement. This neglect has been precipitated by

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both budget and staff restrictions and by the unwillingness of state legislatures and agency officials to delve into the sensitive waters of lobbying activity (Huckshorn 1985). These days many states are increasing their efforts to monitor lobbying activities and punish violators. Thirty-eight states have independent ethics agencies with varying degrees of enforcement authority, and most of these agencies are charged with enforcement of lobby registration and disclosure.

Beyond the minimum requirement for registration and periodic reporting, states vary widely on how stringently they regulate lobbies. While several theories have been offered to explain this variance, none has been tested conclusively. The CCSL argues that increased professionalism in state legislatures will increase the latter's capacity and willingness to regulate organized groups. Professional legislatures, those with higher pay, longer time in session, and adequate staff support, are less dependent on lobbies for information; they also possess the institutional resources necessary for more stringent regulation.

In addition to professionalism, there is reason to believe that differences in political culture may also account for the variance in state lobby regulation laws. Kincaid argues that culture is "logically prior" to socioeconomic and political structural variables because it defines the values that are merely reflected by economic and political structures (Kincaid 1980). Past research shows that political culture is associated with differences in the formal structures of state governments and state policy outcomes (Herzik 1985; Karnig and Sigelman 1975). Both Nice and Peters and Welch link the incidence of political corruption with political culture; lower levels of political corruption are perceived and found in states with "moralistic" subcultures (Nice 1983; Peters and Welch 1978). Despite these findings, no specific link between political culture and regulation of lobbies has been established.

The research presented here examines what factors account for the *stringency* of a state's lobby regulation laws and enforcement procedures. Using a multiple regression model, the researcher tests the predictive value of structural variables, that is, measures of legislative professionalism, as well as cultural, economic, and political variables that might help to explain differences in the rigor of state lobby regulation efforts. The results of a multiple regression analysis give us the effect of each variable on regulation of lobbies while taking all the others into consideration.

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Measuring Key Concepts

An Index of Lobby Regulation

To measure the stringency with which states regulate organized lobbies, an index of lobby regulation was created as the dependent variable. The index consisted of 22 separately scored items drawn from three different dimensions of lobby regulation requirements.[1] These three dimensions were: (1) statutory definition of a lobbyist (seven items); (2) frequency and quality of disclosure (eight items); and (3) oversight and enforcement of regulations (seven items). Each dimension is critical to the state's efforts to regulate special interest activity. The legal definition of lobbyist delineates who is required to register and disclose information. The frequency of reporting and quantity of information contribute to the quality of disclosure. The former ensures that information is updated periodically while the latter requires more or less specificity. The oversight and enforcement structure indicates the seriousness of the state's intentions to enforce its regulations.

Statutory definitions of lobbyists vary in their inclusiveness. Only two states—Arkansas and Illinois which have no statutory designation of lobbyists—fail to include "legislative" lobbying as a criterion for definition. By contrast, thirty states fail to include "administrative" lobbying as a criterion. Seven states designate "elective officials" as lobbyists while seven others designate "public employees." In addition, some states include specific compensation, expenditure, and time standards to delineate lobbying activity. The seven criteria for definition of lobbyists were each coded 1 if a criterion was included in the state's definition of lobbyists and 0 if it was not.

The frequency with which states require lobbyists to report ranges from monthly, both in and out of the session, to annually. Five states—Arkansas, Georgia, Louisiana, Utah, and Wyoming—require no periodic reporting. Frequency of reporting was coded dichotomously to reflect the most extreme differences in frequency. States which require reports to be filed monthly during the session or both in and out of session were coded 1, while states which require reports quarterly, semi-annually, or annually were coded 0. Information disclosed in

[1] All data, with the exception of frequency of reporting requirements, were coded from the Council of State Government's Blue Book 1988-89, *Campaign Finance, Ethics and Lobby Law: Special Edition* (Lexington, Ky.: Council of State Governments, 1988). Data indicating frequency of reporting requirements were taken from Council of State Governments, *The Book of the States, 1988-89*.

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these reports includes the lobbyist's total spending, spending by category, expenditures benefitting public employees including gifts, legislation approved or opposed by the lobbyist, sources of income, total income, and other activities that might constitute influence peddling or conflict of interest. These seven categories were each coded dichotomously depending on whether the state required they be reported.

States also vary a great deal on their willingness to monitor lobby regulation and their capacity to enforce violations. Some state agencies or commissions charged with reviewing lobby reports perform this function more extensively than others with a regular review of all reports. In some states only randomly selected reports or reports about which complaints have been filed are reviewed. Thus the thoroughness of reviews was coded (1 for review of all reports, 0 for less extensive review).

The seriousness of the state's enforcement of lobby regulation depends, in large part, on the prosecutorial authority of the agency or commission charged with regulating lobbyists. Six items measure the rigor of this authority. These items include whether the agency may subpoena witnesses, subpoena records, conduct administrative hearings, impose administrative fines, impose administrative penalties, or file independent court actions. For all of these items, states were coded 1 if the agency possessed this authority and 0 if it did not.

The sum of all 22 items indicated the state's index score. For 20 of the items, a dichotomous coding scheme is the obvious procedure; for two items—frequency of reporting and thoroughness of reviews—some finer distinction is lost in the simple 0/1 coding procedure. However, following Herzik's example, by sampling different items within general categories, the basic concepts embodied in each of the three categories are tapped by several specific variables. Dichotomous coding also eliminates much of the arbitrariness in attempting to create finer distinctions in the coding of each of the two variables (Herzik 1985: 417). Table 1 shows index rankings for the forty-seven states for which data were available.

Legislative Professionalism

In almost twenty years since the CCSL evaluated the decision-making capabilities of state legislatures, we have seen a progressive change from the "citizen" legislature to the "professional" legislature. For example, we are witnessing longer and more frequent sessions. Legislators are receiving higher salaries with more substantial bene-

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TABLE 1
STATES RANKED BY STRINGENCY OF STATE LOBBYING REGULATION
(0 - weakest / 18 - strongest)*

	State	Score		State	Score
1.	New Jersey	18	25.	Texas	10
2.	Washington	18	26.	Alabama	8
3.	Wisconsin	18	27.	Florida	8
4.	California	17	28.	Louisiana	8
5.	Maryland	17	29.	Georgia	7
6.	Massachusetts	17	30.	Mississippi	7
7.	Connecticut	16	31.	Nevada	7
8.	Hawaii	16	32.	Ohio	7
9.	Colorado	15	33.	South Carolina	7
10.	Minnesota	15	34.	West Virginia	7
11.	Nebraska	15	35.	Utah	6
12.	Alaska	14	36.	Missouri	5
13.	Oregon	14	37.	North Dakota	5
14.	Indiana	13	38.	Tennessee	5
15.	Maine	13	39.	Kentucky	4
16.	New York	13	40.	New Hampshire	4
17.	Arizona	11	41.	New Mexico	4
18.	Idaho	11	42.	Delaware	3
19.	Kansas	11	43.	North Carolina	3
20.	Pennsylvania	11	44.	Illinois	2
21.	Iowa	10	45.	Vermont	2
22.	Michigan	10	46.	Wyoming	2
23.	Oklahoma	10	47.	Arkansas	0
24.	Rhode Island	10			

*Data for Montana, South Dakota, and Virginia were unavailable.

fits. Staff support is increasing in both quantity and quality, and legislative staffers are becoming more personalized and more specialized (Lattimer 1985). Computers and modern information systems are now routinely part of the state legislative process.

Many of these changes or "reforms" were called for by the CCSL study (CCSL 1971a). The explicit goal of the reforms was to encourage more informed, more deliberative, and more independent legislatures. Legislators would now have adequate time to consider measures before them. Salary increases would keep good people. Specialized and personalized staffers would help legislators more competently handle increasing amounts of legislation and more conscientiously service

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constituents. All this meant increased legislative independence from executives who would now be forced to share their power.

But independence from the executive branch was not the only goal of professionalization. Legislatures were to become more *independent from special interest groups* as well. The notion that part-time, amateur legislatures are more dependent on organized lobbies takes various forms. One is that amateur legislators face an "information gap" that forces them to rely chiefly on full-time lobbyists for expertise and advice (Maxwell and Crain 1984; Bell and Price 1984). More time to deliberate and better staff support narrows this gap (Patterson 1976). The CCSL adamantly argues that " . . . the surest and quickest way to reduce the influence of special interest lobbyists upon our legislatures is to raise the level of competence in those legislatures to the point where they can compete with lobbyists on even terms on behalf of the citizens" (CCSL 1971b).

Another form of this argument holds that poorly paid legislators are more susceptible to pressures from powerful economic interests whom they are hesitant to regulate. Increasing his or her personal income helps isolate the legislator from these pressures (Bell and Price 1987). Increasing a legislator's pay may help him to eliminate or resist gifts or "perks" from lobbyists. Indeed, in some states, lobby reform has been tied to increases in legislative salaries. As with the U.S. House, longer sessions and higher pay increase the possibility of legislative service as a career. As careerism develops, tenure inevitably increases (Squire 1988). Generally harder to beat, legislators possess the job security necessary to focus more on policy questions and less on politics (Paterson 1987).

Are professional legislatures less dependent on interest groups as the CCSL claims? If this is true, one would expect regulation of organized lobbies to be more rigorous in states with professional legislatures.

Professionalism has been operationalized both as an index (Grumm 1971; Carmines 1974; Morehouse 1981), and by using separate indicators (Squire 1988). The three most common components used to measure this concept are: (1) the level of compensation; (2) the time spent performing legislative duties; and (3) the level of personal and professional staff support.[2]

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[2] Recent scholars have criticized the fuzzy or imprecise conceptualization of legislative professionalism. See LeLoup 1978; Roeder 1979; Bowman and Kearney 1988. In

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The level of salary and benefits is a major factor determining whether a legislator can make legislative service a full-time career (Francis and Baker, 1986). Compensation is a complicated matter with some states paying on an annual basis, while others compensate on a per diem rate. In the latter case, calendar days are used in some states and legislative days in others. Furthermore, the states vary in providing additional compensation through unvouchered expense accounts, travel reimbursements, and insurance and retirement benefits. The measure used in this study is the minimum amount of money paid to legislators, that is, annual base salary plus per diem given in regular sessions.[3]

The second component of professionalization is the time that a legislator spends performing legislative responsibilities. Hence, legislative pay and time on the job defines a "career" legislator. The measure of time used here is the average amount of time spent annually in regular session. Using Council of State Governments data, the average duration of the regular session of each state was calculated for 1986–87 (pp. 116–17). Data list actual adjournment dates rather than formal session limitations and, therefore, is a better measure of actual time in session. The mean was 146 days.

The third component of professionalism is staff support. Reformers argue that professional staff saves time for legislators, improves constituent services, and can improve decision-making by providing unbiased information (Advisory Commission on Intergovernmental Relations 1985). Clark found that better staffing did not necessarily result in "better legislation," but it did result in increased attention to particular policy areas (Clark 1978). It is, therefore, logical to assume that the level of staff support will affect the stringency with which states monitor and enforce lobby regulations.

There are several resources that measure staff support, but the most recent is the Council of Government's data (p. 122). Staff services range from 0, no full-time, shared, or district staff to 5, all three types of staffers. This measure was applied to staff resources in both the lower and upper houses; the range for staff services was 0 to 10. To

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redetermining the measure of legislative capability, Bowman and Kearney performed factor analysis on a number of variables in addition to compensation, session length, and staff support. However, the variance explained by these three variables was consistently as much as three times higher than variables in other factors.

[3] These data are gathered from Council of State Governments, 1988, pp. 97–99.

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check the reliability of this indicator, Simon's measure of staff support was coded similarly (Simon 1979). Correlation between the two measures was significant (r =.63).

Correlation among the three measures of professionalism yielded a very high correlation between pay and length of session (r =.83). In order to avoid the problem of multicolinearity, these two variables were combined to form an index. This was done by multiplying the two measures together. To correct the skewness which results from this multiplicative approach, a square root transformation was performed. Thus only two variables were used to measure professionalism: (1) level of staff support and; (2) the index combining measures for pay and length of session.

Political Culture

Daniel Elazar's concept of political subcultures in the American states has proven useful in predicting formal government structures, political behavior, and policy outcomes. Indeed, Karnig and Seligman found that political culture had more impact on a state's policy outcomes than levels of professionalism (Karnig and Sigelman 1975). Herzik found culture to be a powerful predictor of "openness of government structures and political processes," while Fitzpatrick and Hero established a statistically significant relationship between states with moralistic cultures and the use of merit systems (Herzik 1985; Fitzpatrick and Hero 1988).

Other studies have established a particularly strong link between political culture and the political attitudes and behavior of political leaders and activists as compared to those of the general public (Joslyn 1980; Welch and Peters 1980; Lowery and Sigelman 1982). There is also evidence that states with moralistic cultures are less tolerant of political corruption, have lower rates of federal conviction for corruption, and are more likely to initiate reforms to discourage political corruption than other states (Ritt 1974; Peters and Welch 1978; Kincaid 1980; Nice 1983).

Elazar's description of traditionalistic, individualistic, and moralistic political cultures is employed here (Elazar 1984). The notion of political culture is an historical phenomenon; these three subcultures emerged from interactions between the differences and similarities among ethnic and religious groups as they developed over time. In "traditionalistic" political cultures, the goal of the political system is one of maintaining the existing order. There is low inter-party com-

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petition, and policies and actions are determined primarily by an elite. In an "individualistic" political culture, the political arena is viewed as a market place for ideas and actions. Political life is based on a system of mutual obligations rooted in personal relationships; political success depends on maintaining one's status in the system of mutual obligations. Party competition is strong and professional politicians are an active force. In contrast, the goal of the moralistic political culture is to achieve the broadest good for the community with or without public pressure. Party competition is strong, but the common citizen, rather than the professional politician, is viewed as the primary political actor.

One would expect the stringency of state lobbying laws to be most strongly associated with moralistic political cultures and most weakly associated with traditionalistic. These cultures reflect the most and least concern for the common good respectively. Individualistic cultures would fall somewhere in between. While emphasis on the pursuit of individual goals discourages interest group regulation in individualistic cultures, strong competitive parties responding to public demand might encourage it. To measure these dominant cultural orientations, Ira Sharkansky's operationalization of Elazar's state-by-state summaries was used (Sharkansky 1969).[4]

Socioeconomic Indicators: Economic Resources and Urbanization

A number of studies have concluded that state policy outputs are essentially a response to a state's level of economic resources (Dye 1966; DeLeon 1973). Wealthier states are able to direct resources toward increased public expenditures for a variety of policies; they also tend to be more innovative in attempting to resolve social problems (Walker 1969). Since most of these studies show that wealthier states are more willing to establish broad-based redistributive policies, we might also expect wealthier states to be more assertive in their regulation of narrowly organized interests. Allen and Clark (1981) dem-

[4] Sharkansky's measures were reversed, so that on a scale of nine, one is traditionalistic and nine is moralistic. This was to standardize the positive direction of the independent variables in my model. Sharkansky's nine-point scale has been criticized on the grounds it takes three conceptual dimensions and puts them into a single scale. However, the scale is an appropriate predictive variable for this study because the rankings reflect the expected level of state regulatory effort. That is, I assume moralistic states lead the other two in stringency of lobby regulation, with the individualistic states rank second, followed by the traditionalistic states. Alaska and Hawaii were not included in Sharkansky's measures.

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onstrate that wealthier states were the first to adopt lobby regulation; they speculate that a certain level of economic growth may produce lobbying activity and lobby tactics that in turn prompt regulative response.

The indicator of economic resources used here is the states' per capita *tax capacity* (ACIR 1985: 12). Tax capacity is the dollar amount of revenue that each state would raise if they applied a nationally uniform set of tax rates to commonly used set of tax bases. Because the same tax rates are used for every state, estimated revenue yields vary only because of differences in the underlying bases. Hence tax capacity provides a measure of the hypothetical ability of a state to raise revenues.

In addition to a state's economic resources, one might also expect urbanization to explain the need or willingness of a state to regulate lobbyists. Urbanization is regarded as an indicator of social complexity and mobilization; both conditions might yield a greater need for laws to manage the lobbying pressures that result. In addition, the incidence of corruption is likely to be higher in an urban state prompting calls for regulatory action in an environment that is already accustomed to more pervasive government.

Party Competition

Most scholars regard parties and interest groups as rivals. Strong parties are better able to control the entry of pressures into state government and are generally able to prevail over the policy-making process. In weak party states, major interest groups tend to control policy "because there is no party to synthesize their demands" (Morehouse 1981: 118). Thus one might expect states with stronger and more competitive parties to regulate lobbyists more stringently. The measure employed here is Ranney's "index of interparty competition," which is based upon gubernatorial elections and state legislative seats from the years 1974–1980. The measures are folded so that higher values indicate higher levels of completion (Ranney 1976).[5]

[5] This research employs the updated version of Ranney's index used by John F. Bibby, Cornelius P. Potter, James L. Gibson, and Robert J. Huckshorn, "Parties in State Politics," in Herbert Jacob and Kenneth Vines, *Politics in the American States*, 4th ed., pp. 65–67.

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Analysis

Regression or the method of ordinary least squares (OLS) was performed to test whether the dependent variable (index of lobby regulation) is a function of the independent variables (legislative professionalism, political culture, socio-economic indicators, and party competition). Correlations among independent variables were figured to guard against the possibility of multicolinearity.

As Table 2 shows, the predictive capacity of the multivariate model is highly significant. The F-test for the model is 8.84, significant at the $p < .0001$ level. The R^2 indicates that the model explains a very respectable 58 percent of the variance in the stringency of state lobby regulation. Partial regression coefficients (b's) for each of the independent variables show that the most significant contributors to the model are political culture, level of legislative staff support, and party competition. Indeed, culture, with a t-Value of 4.85 ($p < .0001$) seems to account for much of the model's explanatory power, although staff and party competition are both significant below $p < .05$. Party competition, however, is the only variable negatively associated with lobby regulation.

Table 3 indicates that our model significantly explains the variance in all three categories of the lobby regulation index: definitions of lobbying, frequency and quality of disclosure, and oversight and enforce-

TABLE 2
Multiple Regression Between Lobby Regulation Index(Y) and Staff Resources (X_1), Index for Pay and Session Length (X_2), Political Culture (X_3), Tax Capacity (X_4), Urbanization (X_4), and Party Competition (X_5)

	b	beta	t-Value	Probability
Staff	.68	.30	2.31	.03
Index (Pay/Sess)	.004	.18	1.27	.21
Polit Culture	1.30	.66	4.85	.0001
Tax Capacity	-.021	-.08	.66	.52
Urbanization	.04	.19	1.27	.21
Party Competition	-.001	-.34	2.42	.02

$R^2 = .58$
F-test = 8.84, $p < .0001$
n = 45

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TABLE 3

MULTIPLE REGRESSION BETWEEN THE *THREE CATEGORIES OF LOBBY REGULATION* (Y) AND STAFF RESOURCES (X_1), INDEX FOR PAY AND SESSION LENGTH (X_2), POLITICAL CULTURE (X_3), TAX CAPACITY (X_4), URBANIZATION (X_5), AND PARTY COMPETITION (X_5)

Category 1: Definition of Lobbying				
	b	beta	t-Value	Probability
Staff	.30	.42	3.00	.005
Index (Pay/Sess)	-1.814E-4	-.13	.80	.43
Polit Culture	.32	.49	3.20	.003
Tax Capacity	-.01	-.12	.88	.38
Urbanization	.01	.15	.86	.39
Party Competition	1.051E-5	.01	.06	.95
R^2 =.42				
F-test = 4.89, p <.0007				n = 45

Category 2: Frequency and Quality of Disclosure				
	b	beta	t-Value	Probability
Staff	.34	.36	2.45	.02
Index (Pay/Sess)	-9.863E-5	-.05	.31	.75
Polit Culture	.50	.55	3.59	.001
Tax Capacity	.004	.03	.25	.80
Urbanization	.01	.14	.82	.42
Party Competition	-2.635E-4	-.18	1.10	.28
R^2 =.41				
F-test = 4.83, p <.0008				n = 45

Category 3: Oversight and Enforcement of Regulations				
	b	beta	t-Value	Probability
Staff	.04	.03	.22	.83
Index (Pay/Sess)	.001	.38	2.12	.04
Polit Culture	.36	.38	2.22	.03
Tax Capacity	-.01	-.09	.64	.53
Urbanization	.02	.22	1.18	.25
Party Competition	-.001	-.34	1.89	.07
R^2 =.35				
F-test = 3.35, p <.01				n = 45

ment of regulations. However, there are differences in the contributions of variables in each category. While political culture is significant in all three models, level of staff support is significant in categories one

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and two, definition of lobbying and frequency and quality of disclosure. Category three, which indicates a state's willingness to oversee and enforce regulations, is most significantly predicted by higher pay, longer sessions, and, to a lesser extent, level of party competition, in addition to political culture. Again, party competition is negatively associated with enforcement, but it is not significant at $p < .05$ in any of the three categories.

Discussion

These results indicate that political culture, legislative staff support, higher legislative salaries, longer sessions, and party competition are important predictors of the stringency of state lobby regulation. The long-term historical influences of culture are particularly useful in this regard. Moralistic states are more likely to adopt rigorous regulations that formally govern the influence-peddling activities of lobbyists. While these formal regulations do not insure disclosure and enforcement in all cases, they are the first and most fundamental step in checking the power and influence of special interest lobbies. Through stringent lobbying laws, moralistic states formally express a desire to protect the interests of a broader constituency. Conversely, legislators in traditionalistic or individualistic political cultures are less likely to challenge the role of traditional elites or narrowly organized interests.

Although linked to different categories of regulation, we can conclude that the traits which characterize professional legislatures—more staff, higher levels of pay, and longer sessions—predict the legislature's inclination to regulate organized lobbies. This finding supports the CCSL's argument that raising the level of competence of state legislatures will allow them to compete with lobbyists on behalf of citizens. Legislators with professional staff assistance may rely less on lobbyists for advice or expertise. In other words, the growth of professional staff narrows the "information gap" between legislatures and professional lobbyists. Legislative staffers are also likely to keep legislators informed about the activity of lobbies including activities which threaten ethical boundaries. They may also assist legislators to devise appropriate regulatory policies although their influence on enforcement seems negligible.

While two measures of legislative professionalism—session length and compensation—do not have significant bearing on the state's definition of lobbying or the frequency and quality of states' lobby

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disclosure, they are tied to the stringency of oversight and enforcement. Professional "career" legislatures see that lobby reports are reviewed more frequently and are more likely to give administrative agencies prosecutorial authority. These legislatures express a more serious intent to enforce lobby regulation.

Although unexpected, there are several possible explanations for the negative association between party competition and lobby regulation in the full multivariate model. States with one-party systems may have competing factions that serve in the same capacity as parties to check the activity of lobbies. States with less competitive party systems will generally have more dominant interest groups. In the latter case, regulation of organized lobbies may be the result of increases in real or perceived lobby abuses. Since there is likely to be less emphasis on issues and more emphasis on personality in states dominated by interest groups, the incidences of corruption in these states may be more visible.

As more and more state legislatures address the issue of ethics, questions surrounding the relationship of legislators and lobbyists will continue to be raised. Certainly a state's political culture is an important contextual factor in determining that state's willingness to guard the public interest. Beyond that, a legislature's institutional capacity—a capacity developed by the professionalization of the legislature—contribute to its ability to establish appropriate regulatory measures and rigorous enforcement procedures.

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